

IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA

GEITA SUB-REGISTRY

AT GEITA

CRIMINAL APPEAL NO. 28368 OF 2025

(Originating from Criminal Case No. 22410 of 2024 in the District Court of Nyang'hwale)

DAUDI JEREMIA HUSSEIN.....APPELLANT

VERSUS

REPUBLIC.....RESPONDENT

JUDGMENT

Date of last order: 24/12/2025

Date of Judgement: 31/12/2025

MWAKAPEJE, J.:

In this first appeal, the appellant challenges the decision of the District Court of Nyang'hwale in Criminal Case No. 22410 of 2025, in which he was convicted of rape contrary to sections 130(1), (2)(e), and 131(1), and of abduction contrary to section 134, both of the Penal Code, Cap. 16 R.E. 2023, and was sentenced to 36 years in prison.

The particulars of the alleged offences in the trial court were that on 21, 22 and 23 August 2025, the appellant had carnal knowledge of ABC (17 years), DEF (17 years) and GHK (14 years), respectively. It was also alleged that on 23 August 2025, in Kharumwa village within Nyang'hwale District in Geita Region, the appellant unlawfully took one XYZ, a girl aged 15 years and GHK from the custody of their parents without their consent. The names of all the victims are concealed. The appellant denied the offences, prompting the prosecution to parade 12 witnesses to prove the case against him.

ABC (PW1) testified that on 21 August 2025, the appellant, Daudi Jeremia, introduced himself as a teacher, professed love, promised marriage, and persuaded her to leave home secretly. He took her to Kabeta Guest House, where he had sexual intercourse with her twice. He later persuaded another girl, DEF, to join them. They moved between villages and residences, with the appellant introducing ABC as his sister-in-law and DEF as his wife, until they were found at Tabu Lucas's (PW6) home, where the appellant was arrested.

GHK (PW2) testified that on 23 August 2025, she joined the appellant and others while they were seeking accommodation. That night, in her grandmother's area, the appellant covered her mouth, dragged her to a bush, and raped her. The following morning, her father and uncle confronted the appellant, resulting in his arrest.

XYZ (PW3), testified that she met the appellant at GHK's father's residence and accompanied the group as they moved between homes seeking shelter. She stated that during the night, the appellant and GHK disappeared, and later, village elders intervened, resulting in the appellant's arrest.

PW4, Maria Kulwa, testified that the appellant stayed at her home with two girls he introduced as his wife and sister-in-law. They slept there overnight before leaving. She later learned that GHK (PW2) had been missing and that the appellant was arrested.

PW5, Lucia Mazuku, testified that the appellant and the girls briefly stayed at her residence before leaving after inquiries were made about GHK's whereabouts. PW6, Tabu Lucas, GHK's father, testified that after discovering his daughter was missing, he searched and found her with the appellant and other girls, kept the appellant under watch, and reported to village leaders, who arrested him.

PW7, Mohamed Kabusenzi Mabula, XYZ's (PW3) father, testified that he traced his missing daughter and found her with the appellant, who was then arrested. PW8, Dr. Elias Selestine Exvery, testified that medical examinations conducted on 24 August 2025 showed loss of virginity in the victims, though no fresh injuries, and that the appellant was HIV positive. Medical reports were tendered as exhibits.

PW9, Anita Peter, ABC's (PW1) guardian, testified that ABC disappeared on 21 August 2025 and was later returned by the police, after she disclosed that she had been taken to a guest house by the appellant. PW10, Mhoja Enos Kabete, a guest house attendant, confirmed that on 21 August 2025, the appellant checked into Kabeta Guest House with ABC and paid for a room, with the register tendered as Exhibit P5.

PW11, Abel Thomas Makelele, a local chairman, testified that the appellant lured the girls by claiming he was a teacher taking them to Katoro and assisted in escorting the appellant and the victims to the police station. PW12, D/CPL Adneth, testified that he received the appellant and

victims on 24 August 2025, escorted them for medical examination, reviewed medical and documentary evidence, and confirmed through investigations that the offences occurred at Kabeta Guest House and in Bukungu village.

In his defence, DW1, Daudi Jeremia, denied abducting or raping the victims, claiming that DEF was his wife and ABC his sister-in-law, and that they were merely seeking accommodation in the company of ABC, who was a sister to DEF. He disputed the prosecution's evidence and allegations of rape and abduction. He also disputed the boarding room in a guest house and sleeping with ABC.

After the trial court considered and analysed the evidence, it concluded that the prosecution had proved the first count of rape and two counts of abduction beyond a reasonable doubt, and accordingly convicted and sentenced the appellant.

Dissatisfied with both the conviction and sentence, the appellant has preferred the present appeal on the following grounds of appeal:

- 1. That the appellant was convicted and sentenced on three counts first and second counts for rape under sections 130(1), (2) & 131(1) of the Penal Code [CAP R.E 2023], and third count for abduction under section 134 of the Penal Code [CAP R.E 2023] to 36 years' imprisonment without proof of the alleged offences beyond reasonable doubt.*
- 2. That the trial court erred in law and fact by inferring penetration solely because the victim's private parts were "not intact," disregarding that loss of virginity is not conclusive proof of penetration.*

3. *That the trial court erred in law and fact by accepting the evidence of PW1 as credible, despite PW1 being an unreliable witness, thereby grounding the conviction on untrustworthy testimony.*
4. *That the trial court erred in law and fact by relying on the evidence of PW10 and Exhibit P5, which do not establish the case beyond reasonable doubt.*
5. *That the trial court erred in law and fact by relying on fabricated and constructed evidence for both counts.*
6. *That the trial court erred in law and fact in concluding that penetration occurred, while PW8 and Exhibit PF3 indicate no penetration, notwithstanding the fact that PW1 was not a virgin.*

The appeal was argued orally. The appellant appeared in person and unrepresented, while the respondent, the Republic, was represented by Ms. Kabula Benjamine, learned State Attorney.

In support of his appeal, the appellant prayed that his grounds of appeal be considered and that he be released, asserting that the charges against him were fabricated and that he did not know the complaint.

In response, Ms. Benjamine opposed the appeal and prayed that both the conviction and the sentence imposed by the trial court be upheld. She argued the 2nd and 6th grounds of appeal together, and separately the 3rd and 4th grounds, before addressing the 1st and 5th grounds conjunctively.

Regarding the 2nd and 6th grounds, which alleged that penetration was not proved, Ms. Benjamine submitted that PW8, the medical officer, had testified that there were no bruises or blood stains on PW1's private parts, and the victim had lost her virginity. She, however, contended that

penetration was also proved through the victim's testimony, as PW1 stated that the appellant instructed her to undress at the lodge and they had sexual intercourse, which established penetration. She cited **Yuda John v. Republic (Criminal Appeal No. 238 of 2017) [2021] TZCA 7** and **Mohamed Haji Ali v. Director of Public Prosecutions (Criminal Appeal No. 225 of 2016) [2018] TZCA 332**, noting that courts have held penetration may be proved not only by medical evidence but also by the victim's testimony. Accordingly, she submitted that the 2nd and 6th grounds lacked merit and should be dismissed.

On the 3rd ground, Ms. Benjamine contended that PW1 was a credible witness whose testimony was coherent, consistent, and detailed. She argued that PW1's evidence was corroborated by other prosecution witnesses, including PW9, her guardian, and that there was no inconsistency warranting disbelief. She cited **Goodluck Kyando v. Republic [2006] TLR 363**, emphasising that the court may rely on credible and consistent testimony. She submitted that the trial court had properly evaluated the evidence, correctly believed PW1, and therefore, the 3rd ground should be dismissed.

Concerning the 4th ground, she stated that PW10, the hotel attendant, produced Exhibit P5, the hotel attendance register, which, although not directly proving the offence, corroborated PW1's testimony that the incident occurred in a guest house. PW10 confirmed that the

appellant rented a room and paid Tshs. 4,000, thereby supporting the prosecution's case. She submitted that the 4th ground lacked merit and should be dismissed.

Regarding the 1st and 5th grounds, Ms. Benjamine submitted that the prosecution had proved its case beyond a reasonable doubt and that there was no evidence that the charges were fabricated. She outlined that for rape, the prosecution was required to prove the victim's age, penetration, and the identity of the perpetrator.

She noted that the victim's age was established by PW1, who stated she was 17 years old, born on 12 January 2008, consistent with **Rutoyo Richard v. Republic (Criminal Appeal No. 114 of 2017) [2020] TZCA 298** and **Issaya Renatus v. Republic** (Criminal Appeal No. 542 of 2015) [2016] TZCA 218, which held that age may be proved by the victim, parent, guardian, medical evidence, or birth certificate.

She added that the victim's testimony proved penetration, that the appellant penetrated her twice at the guest house, as supported by **Selemani Makumba v. Republic** (Criminal Appeal No. 94 of 1999) [2006] TZCA 96 and **Buruhani Selemani Mbombo v. Republic** (Criminal Appeal No. 397 of 2022) [2025] TZCA 603, emphasizing that the victim's credibility is paramount.

For the abduction charges under section 134 of the Penal Code, she argued that the prosecution proved the appellant's intent to marry or have

sexual intercourse, as he had taken the victims under the pretext of paying school fees and kept them in his company. She therefore prayed that the conviction and sentence be upheld.

In rejoinder, the appellant maintained that he did not know PW1 and denied the allegations of sexual intercourse, asserting that her testimony was false. He further denied committing abduction, stating that if he had abducted anyone, he would not have sent them to their grandmother, and noted that the alleged arresting uncle did not testify. He reiterated that the case was fabricated and prayed for release.

Having carefully examined the trial court proceedings, the grounds of appeal, and the submissions by both parties, the Court now turns to the central question of whether the prosecution discharged its burden of proof beyond a reasonable doubt. The first ground of appeal will be addressed first, as it anchors the determination of the remaining grounds.

It is essential to consider the cardinal principle in criminal law. It is a settled and fundamental principle of criminal jurisprudence that the burden of proof rests entirely with the prosecution and must be discharged to the high standard of proof beyond reasonable doubt. This burden is immutable and does not at any stage shift to the appellant, whose obligation is limited to raising a reasonable doubt as to the prosecution's case. This principle is expressly codified under section 3(2)(a) of the Evidence Act, Cap. 6 R.E. 2023, which stipulates that:

"A fact is said to be proved when—

(a) in criminal matters, except where any statute or other law provides otherwise, the court is satisfied by the prosecution beyond reasonable doubt that the fact exists."

The position has been consistently affirmed by judicial authorities.

In **Omary Said @ Habibu & Another v. Republic** (Criminal Appeal No. 302 of 2014) [2015] TZCA 284 (16 February 2015), the Court emphatically held that:

"It is the principle of law that in all criminal cases, the burden of proof rests upon the prosecution to prove the charge against the accused person beyond reasonable doubt. The burden never shifts to the accused. What the accused has to do is to raise a doubt on the prosecution's case."

In the instant appeal, the appellant was convicted of raping ABC and abducting XYZ and GHK. To prove the offence of rape under sections 130 (1) (2) (e) and 131 (1) of the Penal Code, the prosecution had to prove beyond a reasonable doubt the age, penetration, and the appellant as the perpetrator, as stated in the cases of **Elias Nduli @ Matulanya vs Republic** (Criminal Appeal No. 54 of 2023) [2025] TZCA 448 (23 May 2025).

Concerning the first element, it has been established that age can be proved by the victim, her parents, guardian, medical doctor or, where need be, production of a birth certificate as was stated in the case of

Rutoyo Richard v. Republic (*supra*) while citing **Issaya Renatus v. Republic** (*supra*), where it was held that:

*"We are keenly conscious of the fact that age is of great essence in establishing the offence of statutory rape under section 130 (1) (2) (e), the more so, under the provision, it is a requirement that the victim must be under the age of eighteen. That being so, it is most desirable that the evidence as to the proof of age be given by the **victim, relative, parent, medical practitioner or, where available, by the production of a birth certificate...**"* [Emphasis supplied]

In the present case, the victim, ABC, testified that she was born in January 2008. At the time of the alleged incident on 21 August 2025, she was 17 years and approximately 7 months old. PW9 corroborated this evidence by confirming that ABC was 17 years old at the time of her testimony. Notably, this fact was not challenged during cross-examination. Accordingly, the victim's age was proved beyond a reasonable doubt.

Regarding penetration, ABC (PW1) testified that on 21 August 2025, she accompanied the appellant to a guest house where, upon arrival, she was asked to undress. She stated that the appellant also undressed, laid on top of her, and inserted his manhood into her vagina, and that they had sexual intercourse twice that night. On the medical aspect, PW8, the medical officer who examined PW1, found no bruises on her private parts and no presence of semen, although he observed that she was not a

virgin. The appellant faulted the prosecution's case on the basis that penetration was not medically established.

However, the settled position of the law is that medical evidence is not the only means of proving rape; it may be proved by other credible evidence on record. In **Yuda John v. Republic** (*supra*), the Court of Appeal emphatically stated that:

*"We also wish to add that, in rape cases, **the testimony of the doctor or the PF3 are not the only evidence to prove rape. Other evidence on the record can as well prove it.** We find support in our previous decisions in the cases of **Ally Mohamed Mkupa v. Republic**, Criminal Appeal No. 2 of 2008 and Charles Joseph v. Republic, Criminal Appeal No. 199 of 2016 (both unreported), where, among other things, it was observed that **rape is not proved by medical evidence alone; some other evidence may also prove it.**"*[Emphasis supplied]

Now, in the present case, therefore, in the absence of conclusive medical findings, the remaining evidence capable of establishing penetration was that of PW1 herself and, to a limited extent, PW9 who stated that PW1 went missing on 21 August 2025 and PW10, the guest house attendant, who testified that he allocated a room to the appellant on the material date.

As stated, the settled law is that in sexual offence cases, the best evidence is that of the victim. This principle was affirmed in **Selemani Makumba v. Republic** (*supra*). Nonetheless, the law equally demands that such evidence must not be accepted wholesale as gospel truth. Its

credibility must be carefully assessed to determine whether the witness is telling nothing but the truth. In **Mohamed Said v. Republic**, Criminal Appeal No. 145 of 2017 [2019] TZCA 252, it was held that:

"We think that it was never intended that the word of the victim of sexual offence should be taken as gospel truth but that her or his testimony should pass the test of truthfulness. We have no doubt that justice in cases of sexual offences requires strict compliance with the rules of evidence in general, and s. 127 (7) of Cap 6 in particular, and that such compliance will lead to punishing offenders only in deserving cases."
[Emphasis supplied]

A similar position was reiterated in **Juma Antoni v. Republic**, Criminal Appeal No. 571 of 2020 [2022] TZCA 250, where it was held that:

"....., although the best evidence of rape is that which comes from the victim, however, that is not a waiver on the court assessing the credibility in order to satisfy itself that the witness is telling nothing but the truth." [Emphasis supplied]

The credibility of a witness, apart from their demeanour, which is the trial court's domain, has always been considered by assessing the coherence of the testimony of a witness and when the said testimony is considered in relation to other witnesses, including that of the accused person. See the cases of **Vuyo Jack vs Director of Public Prosecutions** (Criminal Appeal 334 of 2016) [2018] TZCA 322 (12 December 2018) and **Donad Mwanawima vs The Director of Public Prosecutions** (Criminal Appeal No. 352 of 2019) [2023] TZCA 17735 (6 October 2023). In the latter case, it was stated that:

*It is also settled law that, although assessing the credibility of a witness basing on demeanour is the exclusive domain of the trial court, **it can still be determined by the appellate court when assessing the coherence and consistency of the witness, and when such a witness is considered in relation to the testimony of other witnesses, including that of an accused person.***
[Emphasis supplied]

In the present case, the trial court found PW1 to be a truthful witness and accepted her evidence that she went with the appellant to a guest house on the night of 21 August 2025, that both of them undressed, and that the appellant inserted his manhood into her vagina and had sexual intercourse with her twice. The trial court further held that her evidence was corroborated by PW9, her guardian, who testified regarding her disappearance on the material date, and PW10, who stated that he allocated a room to the appellant on that day.

This Court, being the first appellate court, is under a duty to re-evaluate the entire evidence and draw its own conclusions. Upon close scrutiny of PW1's testimony, it is evident that she stated that she met the appellant for the first time on the material day, agreed to leave with him, and on the same night, accompanied him to a guest house where sexual intercourse allegedly took place. The appellant, on the other hand, categorically denied having slept with or raped PW1 at the guest house. When PW1's narrative is examined from the inception of her encounter with the appellant, it is notable that she had no prior acquaintance with

him, yet agreed to leave her home, travel with him, and engage in sexual intercourse on the very same night.

Considering the age of PW1, being approximately five months shy of attaining the age of 18 years, one would reasonably expect a clearer and more detailed account of how the alleged penetration occurred, particularly given that this was her first encounter with the appellant. Her testimony is silent on critical aspects such as whether she resisted undressing, whether there was any struggle or alarm raised, and to whom she first reported the incident. In **Soma Mbeki vs Republic** (Criminal Appeal 92 of 2020) [2022] TZCA 785 (8 December 2022), while reaffirming that the best evidence in sexual offence cases is ordinarily that of the victim, the Court of Appeal nonetheless cautioned that such evidence must be sufficiently detailed and credible, particularly where the complainant is an adult. The Court observed:

*"However, we are still of the considered view that under the circumstances of this case, where the victim was an adult, further explanation on how and at what point in time she was penetrated ought to have been given by her. **It was expected, for instance, that she would have explained whether she had slept naked and that the appellant encountered no hurdles in penetrating her or if she was not, how the appellant managed to penetrate her in that short moment, that is, between the time when she screamed and raised an alarm and when her grandson rushed to the bedroom to her rescue.**"*[Emphasis supplied]

In the present case, these gaps assume even greater significance given the surrounding circumstances of the alleged offence and the absence of corroborative evidence pointing to recent sexual activity.

Furthermore, and perhaps more troubling, the evidence relating to the guest house introduces additional material doubts. Exhibit P5 shows that Room No. 14 was allocated on 21 August 2025 to two persons, namely Yusuph Katoto and Daud Jelemia. The prosecution offered no explanation as to the identity or role of the second occupant, nor was any evidence led describing the layout or nature of the room, or establishing that the appellant and PW1 enjoyed exclusive occupancy thereof. Equally, there was no clarification regarding the timing of the alleged two incidents of sexual intercourse, or whether such acts, if they occurred at all, took place in the presence or absence of the other recorded occupant and whether it was not the other occupant who raped her.

Additionally, this Court noted that the charge sheet at some point alleged that the appellant also raped DEF, yet she was never called to testify. Throughout his defence, the appellant consistently maintained that DEF was his wife, that it was she who invited him to her parents' home where he met ABC (PW1), the sister of his wife, and that on the material night they slept at his grandmother's residence, where he slept with DEF while ABC slept in a separate room. Despite the centrality of DEF

to both the charge and the defence narrative, the prosecution failed to procure her testimony.

This omission is striking. DEF was a material witness whose evidence was crucial in clarifying the circumstances surrounding the alleged offence and in resolving the competing narratives placed before the Court. It is a settled principle of law that where the prosecution, without any explanation, fails to call a material witness, the Court is entitled to draw an adverse inference that the evidence of such a witness would have been unfavourable to the prosecution's case.

In the present circumstances, the unexplained failure to call DEF further weakens the prosecution's case and reinforces the reasonable doubt already existing in favour of the appellant. In the case of **Emmanuel Said vs Republic** (Criminal Appeal No. 389 of 2023) [2025] TZCA 844 (7 August 2025), it was held that:

Equally, it is settled that failure to call a material witness to testify or explain an important issue entitles the Court to draw an adverse inference.

In the absence of such crucial clarification, serious doubt arises as to whether the alleged penetration, assuming it occurred, was perpetrated by the appellant. This doubt is further compounded by the fact that two adult males were officially recorded as having occupied the same room on the same date, both of whom departed on the following day, namely 22 August 2025. Moreover, the prosecution failed to call DEF, a material

witness whose testimony was central to the narrative of events. The unexplained omission to call such a witness entitles the Court to draw an adverse inference that her evidence would not have supported the prosecution's case, thereby further reinforcing the reasonable doubt in favour of the appellant.

When PW1's evidence is considered in its totality, from her departure from her guardian's home to her eventual return, it is marked by material omissions and unexplained gaps. These deficiencies undermine the coherence and reliability of her account and raise a reasonable doubt. In these circumstances, and contrary to the finding of the trial court, the testimony of PW9 could not adequately corroborate PW1's evidence, as PW9 neither witnessed PW1 leaving with the appellant nor possessed any direct knowledge of the alleged events at the guest house. Similarly, the evidence of PW10 was of limited probative value. He did not identify the girl alleged to have accompanied the appellant, and the guest house records themselves introduced uncertainty as to the identity of the actual occupants of the room on the material date.

In the circumstances, this Court is not satisfied that the prosecution proved, beyond a reasonable doubt, the second and third essential elements of the offence of rape, namely penetration and the identity of the perpetrator. The conviction of rape was therefore unsafe and cannot be sustained.

Regarding the offence of abduction of GHK and XYZ, the prosecution was required to prove beyond a reasonable doubt that the appellant unlawfully took the two unmarried minors from the lawful custody of their respective parent or guardians and against the will of such custodian. Although the ages of both victims, being 14 and 15 years respectively, and their unmarried status were duly established, a careful evaluation of the prosecution evidence discloses material contradictions that strike at the very core of the essential elements of the offence.

First, there is a fundamental inconsistency in the evidence relating to GHK (PW2) as to whether she voluntarily left her father's custody. PW2 testified that she initially remained at her father's residence and later accompanied the appellant after he promised to assist her with school fees. In contrast, PW6, her father, testified that PW2 informed him that she was going to sleep at her grandmother's residence, and it was only later that he discovered she had not done so. This evidence suggests that PW2 left her father's custody with his knowledge and without objection. Consequently, the element of taking against the will of the parent is not established. Notably, the prosecution made no effort to reconcile whether PW2 left voluntarily or was unlawfully taken by the appellant.

The evidence relating to XYZ (PW3) is equally deficient. PW3 testified that she followed the appellant after being asked and moved between several residences in the company of other girls. PW7, her

father, merely stated that she went missing and was later found with the appellant, without explaining how, when, or under what circumstances the appellant allegedly took her from lawful custody. There is no evidence that the will of the guardian was communicated to the appellant at or before the time of departure. Yet, abduction requires proof of an act done against the will of the parent or guardian contemporaneously with the taking, not merely subsequent disapproval. Mere presence of a minor in the company of the appellant, without proof of unlawful taking or inducement from lawful custody, is insufficient to sustain a conviction.

Moreover, the testimonies of PW4, PW5, and PW6 depict the appellant moving openly with the girls while seeking accommodation from relatives and villagers, rather than secretly or forcibly removing them from their homes. The girls' movements appear communal, fluid, and voluntary, with repeated instances of being sent, recalled, or escorted by other persons, including relatives. Such conduct is inconsistent with the criminal intent and clandestine taking contemplated under the offence of abduction.

Taken cumulatively, these contradictions and inconsistencies are neither minor nor peripheral. They go to the very root of the prosecution's case and directly undermine its ability to prove the essential elements of unlawful taking, lawful custody, and action against the will of the parent or guardian. The doubt thereby created is substantial and reasonable, and

in accordance with settled principles of criminal law, it must be resolved in favour of the appellant.

Flowing from the foregoing analysis, and in light of the material defects identified in the prosecution case, this Court is firmly satisfied that the offences of rape and abduction were not proved beyond a reasonable doubt as required by law. The first ground of appeal is therefore dispositive, as its determination effectively resolves the remaining grounds of appeal.

Consequently, the appeal is allowed. The conviction and sentence imposed on the appellant by the District Court of Nyang'hwale in Criminal Case No. 22410 of 2024 are hereby quashed and set aside. The Court further orders that the appellant be released forthwith from custody unless otherwise lawfully held.

It is so ordered.

DATED at **GEITA** this 31st day of December 2025.



G.V. MWAKAPEJE
JUDGE